

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Santosh Prakash	Team: Squad #08	CCRB Case #: 201701407	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 02/14/2017 3:00 PM	Location of Incident: Inside § 87(2)(b)	18 Mo. SOL 8/14/2018	Precinct: 32		
Date/Time CV Reported Thu, 02/23/2017 10:36 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 02/23/2017 10:36 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Kevin Brabazon	10455	953701	032 PCT
2. POM Derek Jaffe	07697	953993	032 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Kevin Brabazon	Abuse: Police Officer Kevin Brabazon entered § 87(2)(b)	A . Exonerated
B . POM Derek Jaffe	Abuse: Police Officer Derek Jaffe entered § 87(2)(b)	B . Exonerated
C . POM Kevin Brabazon	Abuse: Police Officer Kevin Brabazon searched § 87(2)(b)	C . Unsubstantiated
D . POM Derek Jaffe	Abuse: Police Officer Derek Jaffe searched § 87(2)(b)	D . Unsubstantiated

Case Summary

§ 87(2)(b) filed this case on February 23, 2017. § 87(2)(b) resides alone at § 87(2)(b) in Manhattan. On February 14, 2017, at approximately 4:00 pm, § 87(2)(b) returned home to find that his apartment had been entered by PO Kevin Brabazon and PO Derek Jaffe (of the 32nd Precinct), with the assistance of the building's property manager. (Allegations A, B) § 87(2)(b) also found that the apartment had been searched and alleged that it was the officers who did so. (Allegations C, D) § 87(2)(b) never personally interacted with the officers, and was not summonsed or arrested as a result of the incident. The incident was documented on video surveillance footage (embedded below). (BR03)

Mediation, Civil and Criminal Histories

§ 87(2)(b) rejected mediation. Notice of Claim results are pending. § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(g)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has not filed any prior complaints.
- PO Brabazon has been a member of service for 4 years; he has been a subject in two prior cases, on 17 charges, 10 of which were substantiated with agency recommended dispositions of Command Discipline A (CCRB # 201601623). The NYPD dispositions are unknown. § 87(2)(g)
- PO Jaffe has been a member of service for 4 years; he has been a subject in two prior cases, on 5 charges, none of which were substantiated. § 87(2)(g)

Findings and Recommendations

Allegation A: Police Officer Kevin Brabazon entered § 87(2)(b) .

Allegation B: Police Officer Derek Jaffe entered § 87(2)(b) .

§ 87(2)(g) .

As the video footage shows (see below), it is undisputed that PO Brabazon and PO Jaffe entered § 87(2)(b)'s residence: the officers arrive at the building and knock on the door to § 87(2)(b) positioned off-camera to the left of the main entrance (3:00 pm, at 00:18); after waiting for some time, the officers are met by § 87(2)(b) who opens the door to the apartment, allowing them to enter (3:07 pm, at 2:34,); the officers and § 87(2)(b) appear to exit the apartment after approximately three minutes inside (3:10 pm, at 3:20); several minutes later, the officers leave the scene (3:16 pm, at 3:32). (BR03)



Incident.Video.mp4

In his CCRB testimony, § 87(2)(b) acknowledged that his tenancy at the two bedroom unit was undocumented, and that he was involved in an ongoing dispute with the building's property managers. § 87(2)(b) stated that he had continuously lived in and used the apartment as his mailing address for the past two years, claiming: that he inherited it from his cousin, a former superintendent of the building, who vacated after being terminated in 2016; that he still retained full possessory rights to the unit; that in the weeks preceding the incident, he had received informal messages from § 87(2)(b) and his supervisors threatening him with eviction; but that the building had not initiated any legal action against him. On the day of the incident, § 87(2)(b) had been out of the house all day and did not anticipate the afternoon call from § 87(2)(b) who passed the phone to an individual who identified himself as a police officer. The officer asked § 87(2)(b) how long he had resided at the apartment and whether he received mail there. When § 87(2)(b) answered, the officer told him that landlord-tenant matters are only resolved in court, and handed the phone back to § 87(2)(b) without providing any further information. When § 87(2)(b) returned at approximately 4:00 pm, he found his door unlocked and the apartment "ransacked." § 87(2)(b) later informed § 87(2)(b) that he had let the officers into the apartment, but did not explain why they were called, or why he had duplicated the keys. As of March 2017, § 87(2)(b) still resided at § 87(2)(b) (BR01) The investigation contacted the New York County Housing Court's clerk's office and confirmed that § 87(2)(b) was not subject to any eviction proceedings.

When the investigation contacted § 87(2)(b) by telephone, he acknowledged that he was present for the incident and identified himself as the initiating 911 caller. However, § 87(2)(b) declined to provide any further information over phone and – § 87(2)(b) – ultimately became unavailable for an in-person interview. (BR02) The investigation then obtained a brief phone statement from § 87(2)(b) § 87(2)(b)'s supervisor, who was recorded on the Event documentation as the 911 caller. § 87(2)(b) acknowledged that he called 911 on February 14 after § 87(2)(b) informed him that an "unknown individual" had "moved" into § 87(2)(b) a day earlier, on February 13. § 87(2)(b) stated that the unit had been vacant since the end of 2016, and that the former occupant – the building's terminated superintendent – had returned the keys to § 87(2)(b) on February 13. When § 87(2)(b) called 911, he reported that the unit was being occupied by a squatter. However, he was not present for the police response, never spoke to § 87(2)(b) and had no further involvement in the matter. (BR06)

The Event documents show that § 87(2)(b) called 911 at 2:54 pm. § 87(2)(b) reported that a § 87(2)(b) year old male at § 87(2)(b) was "refusing to leave" – that he had been warned previously that he was not "supposed to be" there. No further information was recorded. (BR09)

In their CCRB testimonies, PO Brabazon and PO Jaffe both stated that they were dispatched to an unspecified dispute at the location, without any further information regarding the nature of the call. There, PO Brabazon and PO Jaffe were met by § 87(2)(b) who identified himself as the building superintendent. § 87(2)(b) told the officers that he had requested police assistance because someone had trespassed into § 87(2)(b) a vacant unit. § 87(2)(b) did not provide –

and the officers did not elicit – any further information regarding the situation: § 87(2)(b) did not explain how he acquired knowledge of the trespass, did not specify when it occurred, did not describe the alleged perpetrator, and did not articulate any other supporting facts. While the officers had noticed an open window into the apartment, they could not see inside as it was covered in black plastic. The officers observed no signs of forcible entry and heard no suspicious sounds from inside. However, the officers ultimately accepted § 87(2)(b)'s representations and assumed he had the authority to allow them to enter – especially since he had keys to the unit – and acted with the belief that the trespasser was still inside. (BR04, BR05)

When § 87(2)(b) opened the door, the officers saw that the apartment was not empty – various personal effects, including a mattress on the ground, were dispersed through the living room. The officers entered and visually inspected the premises for approximately three minutes. While PO Brabazon said that he did not enter the bedrooms, PO Jaffe said that he did. Both officers stated that § 87(2)(b) advised only at *this* point in time that the “trespasser” had lived there for the past two months and that the management wanted him removed; he never previously suggested that the unit was occupied continuously. The officers promptly exited the apartment and directed § 87(2)(b) to housing court. PO Brabazon said the same to § 87(2)(b) when § 87(2)(b) then called him. (BR04, BR05)

Under New York law, squatters have an expectation of privacy in the premises they occupy and may be lawfully evicted only after at least a summary proceeding and, possibly, a trial. Unless exigent circumstances are present, law enforcement may not enter such premises without the squatter’s consent. (People v. Stadtmore, 52 A.D.2d 853, citing Real Property Actions and Proceedings Law, § 713-3.) (BR07) However, the U.S. Supreme Court ruled on consent as follows: “[In] order to satisfy the ‘reasonableness’ requirement of the Fourth Amendment, what is generally demanded of the many factual determinations that must regularly be made by agents of the government...is not that they always be correct, but that they always be reasonable.” (Illinois v. Rodriguez, 497 U.S. 177) (BR08) “The Constitution is no more violated when officers enter without a warrant because they reasonably (though erroneously) believe that the person who has consented to their entry is a resident of the premises, than it is violated when they enter without a warrant because they reasonably (though erroneously) believe they are in pursuit of a violent felon who is about to escape... determination of consent to enter must ‘be judged against an objective standard’: would the facts available to the officer at the moment . . . warrant a man of reasonable caution in the belief that the consenting party had authority over the premises?” (*ibid.*)

§ 87(2)(g)
[REDACTED]

§ 87(2)(g) . It is therefore recommended that **Allegation A** and **Allegation B** be closed as **Exonerated**.

Allegation C: Police Officer Kevin Brabazon searched § 87(2)(b) .
Allegation D: Police Officer Derek Jaffe searched § 87(2)(b) .

§ 87(2)(g) .

§ 87(2)(b) testified that he returned home to find it “ransacked” – every closet and drawer in the apartment had been opened, and his personal belongings had been rummaged through. Additionally, he found some items including petty cash missing. § 87(2)(b) offered no explanation. (BR01)

PO Brabazon denied searching the apartment in any way and denied going through § 87(2)(b) s effects. PO Jaffe did not recall doing so. Neither observed § 87(2)(b) search the apartment. (BR04, BR05)

The video shows that the officers were inside the apartment for approximately three minutes, but does not show what happened inside. (BR03)

§ 87(2)(g) .
§ 87(2)(g) .
§ 87(2)(b) . It is therefore recommended that **Allegation C** and **Allegation D** be closed as **Unsubstantiated**.

Squad: 8

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date